

Vinod Pratap Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 August 2021 · WRIT - C No. - 9772 of 2021 · **Writ disposed; CGRF to conclude pending case; recovery to abide Forum.**

HEADNOTE

A writ challenging recovery of disputed electricity dues, where a complaint is already pending before the Consumer Grievance Redressal Forum, is disposed of without a counter affidavit. The Forum is directed to conclude the pending case within a fixed time; the recovery shall abide the Forum's decision.

FACTUAL SUMMARY

Vinod Pratap Singh challenged recovery of Rs. 1,10,029 as electricity dues, asserting he had never applied for or consumed electricity and that no theft case stood against him. On that disputed demand he had already filed Case No. 53 of 2019 before the Consumer Grievance Redressal Forum, Fatehpur, under clause 4.25 of the U.P. Electricity Supply Code, 2005, which remained pending when he invoked the writ jurisdiction of the Allahabad High Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.25

pending CGRF complaint and disputed recovery

HOLDING

Where a complaint against disputed electricity recovery is already pending before the CGRF, the writ court may dispose of the petition without calling for a counter affidavit and direct the Forum to conclude that case within a fixed period, the recovery to abide the Forum's decision. ¶ 4-6

FLAG clause 4.25 cited as the CGRF-complaint vehicle; not construed

PRINCIPLE TAGS

cgrf-pending-complaint-expedited-recovery-to-abide Writ against Rs. 1,10,029 electricity recovery disposed by directing already-pending CGRF Case No. 53 of 2019 to be concluded within two months of production of the order; recovery to abide the Forum. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER CONSUMED ELECTRICITY OR WAS LIABLE FOR THE RS. 1,10,029 DEMAND, INCLUDING ANY THEFT ALLEGATION

Merits left to CGRF Case No. 53 of 2019; recovery to abide that decision. ¶ 2-6